SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1322 of 2021 (YEAR: 2023)

CORAM: S. RAVINDRA BHAT, ARAVIND KUMAR

Md. Asfak Alam
... Appellant(s) / Petitioner(s)
Versus
State of Jharkhand
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973, Indian Penal Code, 1860
Sections:	Section 41 CrPC, Section 41A CrPC, Section 498A IPC

JUDICIAL HEADNOTE & SUMMARY

Strictly directed courts and police forces nationwide to enforce Arnesh Kumar guidelines and penalize officers engaging in unlawful or mechanical arrests.

RATIO DECIDENDI

The Court held that: Strictly directed courts and police forces nationwide to enforce Arnesh Kumar guidelines and penalize officers engaging in unlawful or mechanical arrests. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Md. Asfak Alam v. State of Jharkhand (Criminal Appeal No. 1322 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, Indian Penal Code, 1860, particularly Section 41 CrPC, Section 41A CrPC, Section 498A IPC. Strictly directed courts and police forces nationwide to enforce Arnesh Kumar guidelines and penalize officers engaging in unlawful or mechanical arrests.

OPERATIVE ORDER

ORDER: Decided